

NHRC AND SHRC

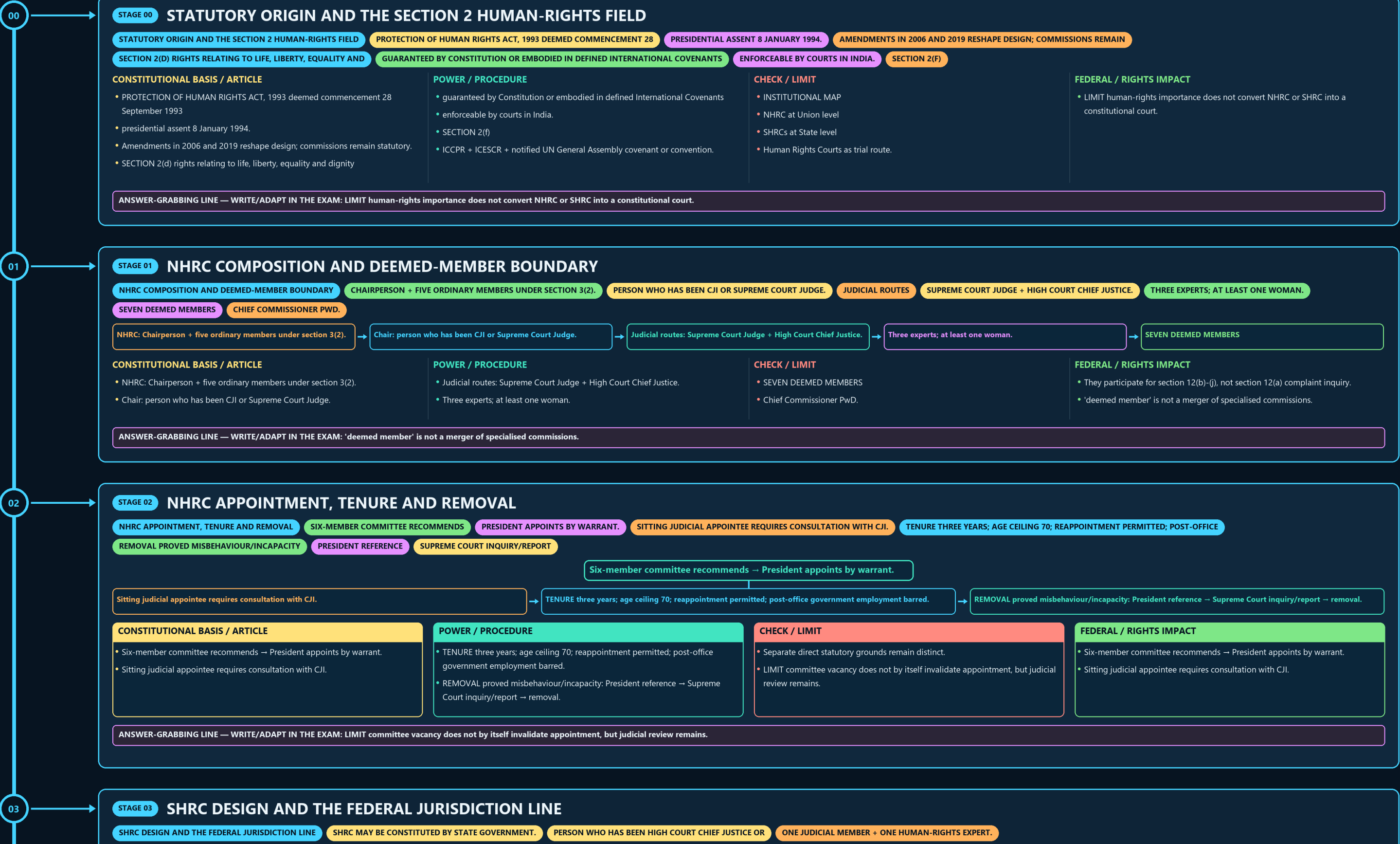
STATUTORY ORIGIN AND THE → NHRC COMPOSITION AND DEEMED-MEMBER → NHRC APPOINTMENT, TENURE AND → SHRC DESIGN AND THE → SECTION 12 FUNCTIONS AND → INVESTIGATION SUPPORT AND PROCEDURAL

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT committee vacancy does not by itself invalidate appointment, but judicial review remains.

03

STAGE 03 SHRC DESIGN AND THE FEDERAL JURISDICTION LINE

SHRC DESIGN AND THE FEDERAL JURISDICTION LINE

SHRC MAY BE CONSTITUTED BY STATE GOVERNMENT.

PERSON WHO HAS BEEN HIGH COURT CHIEF JUSTICE OR

ONE JUDICIAL MEMBER + ONE HUMAN-RIGHTS EXPERT.

GOVERNOR APPOINTS AFTER STATE COMMITTEE RECOMMENDATION; PRESIDENT REMOVES UNDER

STATE LIST + CONCURRENT LIST MATTERS.

NO DUPLICATE INQUIRY WHERE NHRC OR ANOTHER COMMISSION IS

SECTION 29 ADAPTS SECTION 12 AND OMITTS TREATY-STUDY CLAUSE

CONSTITUTIONAL BASIS / ARTICLE

- SHRC MAY be constituted by State Government.
- Chair: person who has been High Court Chief Justice or Judge.

POWER / PROCEDURE

- One judicial member + one human-rights expert.
- Governor appoints after State committee recommendation; President removes under the Act.

CHECK / LIMIT

- State List + Concurrent List matters.
- No duplicate inquiry where NHRC or another commission is seized.

FEDERAL / RIGHTS IMPACT

- Section 29 adapts section 12 and omits treaty-study clause 12(f).
- TRAP appointment by Governor does not mean removal by Governor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP appointment by Governor does not mean removal by Governor.

04

STAGE 04 SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS

SECTION 12 FUNCTIONS AND SECTION 13 EVIDENCE POWERS

SECTION 12 FUNCTIONS SUO MOTU OR PETITION INQUIRY

COURT INTERVENTION WITH APPROVAL INSTITUTION VISITS

REVIEW CONSTITUTIONAL/LEGAL SAFEGUARDS REVIEW FACTORS INHIBITING RIGHTS

STUDY TREATIES RESEARCH

NGO ENCOURAGEMENT

OTHER NECESSARY FUNCTIONS.

SECTION 13 INQUIRY POWERS SUMMON AND EXAMINE ON OATH

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 12 FUNCTIONS suo motu or petition inquiry
- court intervention with approval institution visits
- review constitutional/legal safeguards review factors inhibiting rights
- study treaties research

POWER / PROCEDURE

- NGO encouragement
- other necessary functions.
- SECTION 13 INQUIRY POWERS summon and examine on oath
- affidavits public records

CHECK / LIMIT

- specified additional powers.
- SECTION 14 INVESTIGATION
- Commission may use Central or State government agency or officers with consent.
- PROCEDURAL FAIRNESS notice and hearing where reputation or conduct may be prejudicially affected.

FEDERAL / RIGHTS IMPACT

- LIMIT civil-court evidence powers support inquiry
- they do not create ordinary civil or criminal jurisdiction.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: they do not create ordinary civil or criminal jurisdiction.

05

STAGE 05 INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS

INVESTIGATION SUPPORT AND PROCEDURAL FAIRNESS

SECTIONS 11 AND 14

CENTRAL GOVERNMENT MAKES SPECIFIED STAFF AVAILABLE TO NHRC.

COMMISSION MAY USE CENTRAL/STATE AGENCY OR OFFICERS WITH GOVERNMENT

AGENCY WORKS UNDER COMMISSION DIRECTION FOR THE ASSIGNED INVESTIGATION

SECTION 16

GIVE A REASONABLE OPPORTUNITY OF HEARING WHERE CONDUCT OR

LIMIT GOVERNMENT-LINKED STAFF CAN SUPPORT CAPACITY, BUT DOES NOT

SECTIONS 11 AND 14

Central Government makes specified staff available to NHRC.

Commission may use Central/State agency or officers with government consent.

Agency works under Commission direction for the assigned investigation and reports back.

SECTION 16

CONSTITUTIONAL BASIS / ARTICLE

- SECTIONS 11 AND 14
- Central Government makes specified staff available to NHRC.

POWER / PROCEDURE

- Commission may use Central/State agency or officers with government consent.
- Agency works under Commission direction for the assigned investigation and reports back.

CHECK / LIMIT

- SECTION 16
- Give a reasonable opportunity of hearing where conduct or reputation may be prejudicially affected.

FEDERAL / RIGHTS IMPACT

- LIMIT government-linked staff can support capacity, but does not equal an independent permanent investigation cadre.
- SECTIONS 11 AND 14

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT government-linked staff can support capacity, but does not equal an independent permanent investigation cadre.

06

STAGE 06 INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR

INQUIRY OUTPUTS, REPORTING AND THE ONE-YEAR BAR

ENTRY COMPLAINT OR SUO MOTU MATERIAL

JURISDICTION SCREEN

INQUIRY OR INVESTIGATION.

SECTION 36 NO PARALLEL INQUIRY WHERE ANOTHER NAMED COMMISSION

SECTION 36(2)

NO INQUIRY AFTER ONE YEAR FROM THE ALLEGED VIOLATIVE

SECTION 18 OUTPUTS RECOMMEND COMPENSATION OR DAMAGES RECOMMEND PROSECUTION

ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

SECTION 36 no parallel inquiry where another named commission is seized.

Section 36(2): no inquiry after one year from the alleged violative act.

SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

CONSTITUTIONAL BASIS / ARTICLE

- ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

POWER / PROCEDURE

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

CHECK / LIMIT

- Commission publishes report, recommendation and response.
- LEGAL EFFECT recommendation carries public and institutional weight but is

FEDERAL / RIGHTS IMPACT

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.

SECTION 36 no parallel inquiry where another named commission is seized.

Section 36(2): no inquiry after one year from the alleged violative act.

SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

CONSTITUTIONAL BASIS / ARTICLE

- ENTRY complaint or suo motu material → jurisdiction screen → inquiry or investigation.
- SECTION 36 no parallel inquiry where another named commission is seized.
- Section 36(2): no inquiry after one year from the alleged violative act.

POWER / PROCEDURE

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other
- action approach Supreme Court or High Court recommend immediate interim relief.
- FOLLOW-UP government comments/action report ordinarily within one month

CHECK / LIMIT

- Commission publishes report, recommendation and response.
- LEGAL EFFECT recommendation carries public and institutional weight but is not a self-executing decree.
- TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

FEDERAL / RIGHTS IMPACT

- SECTION 18 OUTPUTS recommend compensation or damages recommend prosecution or other

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP action-taken reporting != mandatory acceptance and grave facts alone do not erase section 36(2).

07

STAGE 07

SECTION 19 ARMED-FORCES PROCEDURE

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NHRC OWN MOTION/PETITION

SEEK CENTRAL GOVERNMENT REPORT

EITHER STOP OR RECOMMEND

CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS

COMMISSION PUBLISHES REPORT, RECOMMENDATION AND RESPONSE.

ARMED FORCES

NAVAL, MILITARY, AIR AND OTHER ARMED FORCES OF UNION.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC own motion/petition → seek Central Government report
- either stop or recommend → Central Government reports action within three months

POWER / PROCEDURE

- Commission publishes report, recommendation and response.
- Armed forces = naval, military, air and other armed forces of Union.

CHECK / LIMIT

- State police are not automatically within this definition.
- LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

FEDERAL / RIGHTS IMPACT

- It does not create a rights-free zone.
- NHRC own motion/petition → seek Central Government report

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT section 19 replaces ordinary direct inquiry with a report-based route.

08

STAGE 08

HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE

HUMAN RIGHTS COURTS AND PROSECUTION BRIDGE

SECTIONS 30-31

STATE MAY, WITH HIGH COURT CHIEF JUSTICE CONCURRENCE, SPECIFY

SPEEDY TRIAL OF OFFENCES ARISING FROM HUMAN-RIGHTS VIOLATIONS.

SPECIAL PUBLIC PROSECUTOR

PUBLIC PROSECUTOR OR ADVOCATE WITH AT LEAST SEVEN YEARS'

COMMISSION INQUIRES/RECOMMENDS

POLICE INVESTIGATE OFFENCES

CONSTITUTIONAL BASIS / ARTICLE

- SECTIONS 30-31
- State MAY, with High Court Chief Justice concurrence, specify a Court of Session for each district.

POWER / PROCEDURE

- Purpose: speedy trial of offences arising from human-rights violations.
- Special Public Prosecutor: Public Prosecutor or advocate with at least seven years' practice.

CHECK / LIMIT

- Commission inquires/recommends → police investigate offences
- prosecutor presents case → Sessions Court adjudicates.

FEDERAL / RIGHTS IMPACT

- Notification is enabling; do not assume automatic nationwide operation.
- SECTIONS 30-31

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Notification is enabling; do not assume automatic nationwide operation.

09

STAGE 09

OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS

OVERLAP, REFERRAL AND SPECIALISED COMMISSIONS

NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND

SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND

SECTION 29 ADAPTS FUNCTIONS AND OMITTS TREATY STUDY.

NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC

NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES.

WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY

COORDINATION COMMON INTAKE METADATA

NHRC national statutory mandate subject to PHRA exclusions and transfer rules.

SHRC inquires into matters relatable to State List and Concurrent List

section 29 adapts functions and omits treaty study.

NHRC may transfer a complaint to a competent SHRC under statutory conditions.

CONSTITUTIONAL BASIS / ARTICLE

- NHRC national statutory mandate subject to PHRA exclusions and transfer rules.
- SHRC inquires into matters relatable to State List and Concurrent List
- section 29 adapts functions and omits treaty study.

POWER / PROCEDURE

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.
- NCSC, NCST and NCBC have constitutional safeguard mandates.
- Women, child, minority and disability bodies have specialised statutory fields.

CHECK / LIMIT

- COORDINATION common intake metadata → reasoned referral → no duplicate inquiry
- joint thematic work → preserve specialist voice.
- LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

FEDERAL / RIGHTS IMPACT

- NHRC may transfer a complaint to a competent SHRC under statutory conditions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

ordinary PHRA amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT an umbrella merger cannot absorb constitutional commissions through ordinary PHRA amendment.

10

STAGE 10

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, ACCREDITATION AND CASE-LAW CONTROLS

PARIS PRINCIPLES, 1993 BROAD LEGAL MANDATE

OPEN APPOINTMENT ADEQUATE RESOURCES

STABLE TENURE

INDEPENDENT METHODS

DOMESTIC TEST

PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT

GANHRI CONTROL

PARIS PRINCIPLES, 1993 broad legal mandate

open appointment adequate resources → stable tenure → independent methods

CONSTITUTIONAL BASIS / ARTICLE

- PARIS PRINCIPLES, 1993 broad legal mandate
- open appointment adequate resources
- stable tenure
- independent methods
- DOMESTIC TEST

POWER / PROCEDURE

- GANHRI CONTROL
- March 2025 SCA recommended B downgrade.
- India challenged with required Bureau support.
- Public membership page continued to list India as A on the 24 August 2026 control.
- SAFE LANGUAGE current public A listing + unresolved official scrutiny.

CHECK / LIMIT

- A listing != proof of perfect Paris-Principles compliance.
- Paramjit Kaur v. State of Punjab (1999)
- Supreme Court used NHRC as an expert body assisting Article 32 jurisdiction.
- This constitutional assignment is not ordinary PHRA jurisdiction.
- N.C. Dhoundial v. Union of India (2003) section 36(2) is a jurisdictional bar

FEDERAL / RIGHTS IMPACT

- EEVFAM (2016) excessive-force allegations require lawful inquiry under Article 32 oversight
- NHRC is a valuable route but not exclusive and recommendations were not made generally binding.
- Court-assigned expertise may exceed the ordinary route, but an autonomous statutory commission remains bound by statutory limits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Court-assigned expertise may exceed the ordinary route, but an autonomous statutory commission remains bound by statutory limits.

11

STAGE 11

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

LIMITS, REFORMS, PYQS AND QUALIFIED VERDICT

STRUCTURAL LIMITS RECOMMENDATORY OUTPUTS

ONE-YEAR BAR

ARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORT

FEDERAL AND OVERLAP BOUNDARIES.

PRACTICAL LIMITS VACANCIES

DELAYED REPORTS

UNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING

STRUCTURAL LIMITS recommendatory outputs → one-year bar → armed-forces report route government-linked investigation support → federal and overlap boundaries. → PRACTICAL LIMITS vacancies

CONSTITUTIONAL BASIS / ARTICLE

- STRUCTURAL LIMITS recommendatory outputs
- one-year bar
- armed-forces report route government-linked investigation support
- federal and overlap boundaries.
- PRACTICAL LIMITS vacancies

POWER / PROCEDURE

- delayed reports
- uneven SHRC capacity weak Human Rights Court routing
- limited civil-society trust.
- REFORM independent multidisciplinary investigation cadre
- open plural appointments → time-bound reasoned response

CHECK / LIMIT

- grave/concealed-violation limitation reform
- safeguarded armed-forces fact-finding → interoperable referrals.
- PYQ ROUTES
- 2018 umbrella-commission debate
- 2021 limitations and remedies

FEDERAL / RIGHTS IMPACT

- 2023 body-classification support.
- MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS VERDICT strengthen fact-finding, independence and follow-through without misdescribing NHRC as a court.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

COMPARATIVE INSTITUTIONAL DESIGN REFINEMENTS

[ANALYSIS] A STRONGER COMMISSION NEED NOT BECOME A COURT.

A CALIBRATED MODEL CAN PRESERVE RECOMMENDATORY INQUIRY WHILE IMPOSING

[ANALYSIS] INDEPENDENCE HAS SEPARATE DIMENSIONS

APPOINTMENT PLURALISM, INVESTIGATIVE AUTONOMY, BUDGET ADEQUACY, SECURITY OF TENURE

A REFORM ANSWER SHOULD DIAGNOSE EACH RATHER THAN USE

[LIMIT] PARIS PRINCIPLES AND GANHRI ACCREDITATION ASSESS INSTITUTIONAL COMPATIBILITY

OPTIONAL DOCTRINE / CASE

- Comparative institutional design refinements
- [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a statutory comply-or-give-reasons duty and enabling court escalation on
- [ANALYSIS] Independence has separate dimensions: appointment pluralism, investigative autonomy, budget adequacy, security of tenure and publication/follow-up.

ADVANCED LIMIT

- A reform answer should diagnose each rather than use "toothless" as a substitute for analysis.
- [LIMIT] Paris Principles and GANHRI accreditation assess institutional compatibility
- they do not themselves alter the PHRA, invalidate appointments or convert recommendations into decrees.
- [ANALYSIS] Shared intake standards and reasoned referral can reduce NHRC-SHRC-specialist overlap without erasing constitutional or group-specific mandates.

COMPARATIVE NUANCE

- Comparative institutional design refinements - [ANALYSIS] A stronger commission need not become a court.
- A calibrated model can preserve recommendatory inquiry while imposing a
- statutory comply-or-give-reasons duty and enabling court escalation on default.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels

NHRC AND SHRC • TILE 4/4 • same master rows 8642-11876 of 11876 • end